

libraries without any suggestion that such activity has in any way interfered with executive confidentiality. Indeed, in light of this consistent historical practice, past and present executive officials must be well aware of the possibility that, at some time in the future, their communications may be reviewed on a confidential basis by professional archivists. Appellant has suggested no reason why review under the instant Act, rather than the Presidential Libraries Act, is significantly more likely to impair confidentiality, nor has he called into question the District Court's finding that the archivists' "record for discretion in handling confidential material is unblemished." 408 F. Supp., at 347.

Moreover, adequate justifications are shown for this limited intrusion into executive confidentiality comparable to those held to justify the *in camera* inspection of the District Court sustained in *United States v. Nixon, supra*. Congress' purposes in enacting the Act are exhaustively treated in the opinion of the District Court. The legislative history of the Act clearly reveals that, among other purposes, Congress acted to establish regular procedures to deal with the perceived need to preserve the materials for legitimate historical and governmental purposes.¹⁴ An incumbent President should not be dependent on happenstance or the whim of a prior President when he seeks access to records of past decisions that define or channel current governmental obligations.¹⁵ Nor should the American people's ability to recon-

¹⁴ From its exhaustive survey of the legislative history, the District Court concluded that the public interests served by the Act could be merged under "the rubric of preservation of an accurate and complete historical record." *Id.*, at 348-349.

¹⁵ S. Rep. No. 93-1181, pp. 3-5 (1974); H. R. Rep. No. 93-1507, p. 3 (1974); 120 Cong. Rec. 37904 (remarks of Rep. Abzug). See also § 102 (d) of the Act.

Presidents in the past have had to apply to the Presidential libraries of their predecessors for permission to examine records of past govern-